

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2837

By: Burns

AS INTRODUCED

An Act relating to medical marijuana; amending Section 3, Chapter 328, O.S.L. 2022, as amended by Section 1, Chapter 415, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.14b), which relates to the Oklahoma Medical Marijuana and Patient Protection Act; directing the Authority to issue credentials to employees who submit certain documentation; requiring medical marijuana business employees to submit proof of completion of educational training; requiring employees to annually complete educational training; mandating submission of proof of completion of educational training in order to receive credential; providing list of topics to be included in training; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 3, Chapter 328, O.S.L. 2022, as amended by Section 1, Chapter 415, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.14b), is amended to read as follows:

Section 427.14b. A. Beginning January 1, 2024, the Oklahoma Medical Marijuana Authority shall require employees of a medical marijuana business licensee to apply for and receive a credential authorizing the employee to work in a licensed medical marijuana business.

1 B. The Authority may contract with one or more third-party
2 vendors to provide the credentialing services necessary to carry out
3 the provisions of this section.

4 C. The Authority shall determine the services to be provided by
5 such third-party vendor and shall establish costs and prices. If
6 contracted for credentialing services, a third-party vendor shall on
7 behalf of the Authority conduct the background checks and verify
8 eligibility ~~and suitability~~ for any employees of a medical marijuana
9 business license holder to obtain a credential.

10 D. Upon successful completion ~~by the third-party vendor~~ of the
11 national fingerprint-based background check conducted by the
12 Oklahoma State Bureau of Investigation within thirty (30) days prior
13 to the application, completion of the educational training required
14 pursuant to the provisions of this section, and verification of
15 eligibility ~~and suitability~~ for an employee, the ~~third-party vendor~~
16 Authority shall issue a credential to the employee. The applicant
17 shall submit proof of completion of the required educational
18 training in the credential application, and the results of
19 background checks and verifications shall be provided to the
20 Authority by the third-party vendor.

21 E. Beginning January 1, 2026, in order to receive an employee
22 credential, all employees of a licensed medical marijuana business
23 shall annually complete an educational training course provided by
24 or approved by the Authority. The employee shall submit proof of

1 completion of the required educational training in order to receive
2 an employee credential. Such training may include an overview of
3 state statutes and administrative rules, patient privacy
4 requirements, and the safe handling and storage of medical
5 marijuana.

6 F. If the third-party vendor determines that an employee of a
7 medical marijuana business holder does not meet the minimum
8 statutory requirements for a credential, the applicant or employee
9 shall have no recourse against the third-party vendor but may appeal
10 such adverse determination to the Authority.

11 ~~F.~~ G. The third-party vendor shall not be civilly liable to an
12 applicant, licensee, or employee of a licensee for any acts taken in
13 good-faith compliance with the provisions of Section 420 et seq. of
14 this title and the Oklahoma Medical Marijuana and Patient Protection
15 Act and the rules promulgated by the Oklahoma Medical Marijuana
16 Authority.

17 ~~G.~~ H. 1. The Authority shall review the medical marijuana
18 credential application; approve, reject, or deny the application;
19 and send the approval, rejection, or denial letter to the applicant
20 by the same method in which the application was submitted to the
21 Authority.

22 2. Each approved applicant shall be issued a credential, which
23 shall act as proof of his or her approved status, to be worn or
24 displayed during the ~~employee's~~ hours of work of the employee.

1 Rejection and denial letters shall provide a reason for the
2 rejection or denial. Applications may only be rejected or denied
3 for failure to meet the standards set forth in the provisions of the
4 Oklahoma Medical Marijuana and Patient Protection Act or rules
5 promulgated by the Executive Director. If an application is
6 rejected for failure to provide required information, the applicant
7 shall have thirty (30) days to submit the required information for
8 reconsideration. Unless the Authority determines otherwise, an
9 application that has been resubmitted but is still incomplete or
10 contains errors that are not clerical or typographical in nature
11 shall be denied.

12 ~~H.~~ I. The Executive Director of the Authority may promulgate
13 rules to implement the provisions of this section.

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